

Getting FLC licensed for retaining walls

What we have to do, what it costs, and what Alistair gets paid.

01 Where we stand

Any retaining wall job over **\$3,300** needs a QBCC licence. **FLC hasn't got one.**

Alistair has one. But it's **his, personally** — it doesn't cover the company. To get FLC its own licence, we have to **employ him**. That's the law: a company licence needs a licensed builder who is a director, secretary or employee. A subbie doesn't count.

FIX THIS TODAY

Our website, quotes and socials show **“QBCC #76041”**. That's **Alistair's number, not ours**. Using someone else's licence number as our own is a breach on its own. **Take it down now**. Costs nothing, stops the problem growing.

AND UNTIL THE LICENCE COMES THROUGH

We can't quote, sign or start any wall over \$3,300. Working unlicensed risks a fine around **\$43,000** — and worse, an unlicensed builder **can't legally be paid** for the job.

02 What we're asking you to approve

#	DECISION
1	Apply for FLC's own QBCC licence — going for the trade class, so we need \$12,000 in the company instead of \$46,000
2	Employ Alistair as a casual — required by law to get the licence
3	Pay him 5% of each wall , covering his wages and super
4	Keep \$16,000–\$24,000 of profit in the company instead of drawing it
5	Take no wall work over \$3,300 until the licence lands

03 The deal with Alistair

How he's employed	Casual — job by job. No commitment either way.
What he's paid	5% of each job, covering wages and super
Hourly rate	\$70/hr — the legal backstop, not the real pay
His time per wall	A desk check before we quote, plus 2 site visits ≈ 4.5 hours
Travel	Not paid time. Covered by the rate, plus a per-km allowance.
His main job	Tell us <i>before we quote</i> whether a wall is inside our licence and needs no engineer
What he doesn't do	He does not certify walls. An engineer does that.

WHY THERE'S AN HOURLY RATE AT ALL

The law says you must pay an employee for their time. So we pay him \$70/hr as he works, then top him up to the full 5% when the job finishes. **He gets 5%.**
The hourly rate is just paperwork that keeps us both safe.

04 What Alistair gets paid, by job value

JOB VALUE EX GST	HE GETS (5%)	PAID AS HE WORKS	TOP-UP AT THE END	OF WHICH SUPER
\$10,000	\$500	\$315	\$131	\$54
\$11,000	\$550	\$315	\$176	\$59
\$12,000	\$600	\$315	\$221	\$64
\$13,000	\$650	\$315	\$265	\$70
\$14,000	\$700	\$315	\$310	\$75
\$15,000	\$750	\$315	\$355	\$80
\$16,000	\$800	\$315	\$399	\$86
\$17,000	\$850	\$315	\$444	\$91
\$18,000	\$900	\$315	\$489	\$96
\$19,000	\$950	\$315	\$533	\$102
\$20,000	\$1,000	\$315	\$578	\$107

JOB VALUE EX GST	HE GETS (5%)	PAID AS HE WORKS	TOP-UP AT THE END	OF WHICH SUPER
\$21,000	\$1,050	\$315	\$622	\$113
\$22,000	\$1,100	\$315	\$667	\$118
\$23,000	\$1,150	\$315	\$712	\$123
\$24,000	\$1,200	\$315	\$756	\$129
\$25,000	\$1,250	\$315	\$801	\$134
\$26,000	\$1,300	\$315	\$846	\$139
\$27,000	\$1,350	\$315	\$890	\$145
\$28,000	\$1,400	\$315	\$935	\$150
\$29,000	\$1,450	\$315	\$980	\$155
\$30,000	\$1,500	\$315	\$1,024	\$161

Reading a row. An \$18,000 wall costs us **\$900** for Alistair. He gets \$315 as he works his 4.5 hours, then a **\$489 top-up** when the job finishes. \$96 of the \$900 is his super.

TWO THINGS WHEN YOU'RE PRICING A WALL

Add roughly **\$25–\$55** per job for WorkCover, so budget about **5.5%** all in. And if a job drags on, every extra hour of his time adds **\$78** and eats the top-up.

05 One decision worth \$34,000

Alistair's licence is a **Contractor Licence, Builder — Low Rise, number 76041, expiring 16/03/27**.

QBCC won't licence a company unless it holds a minimum amount of its own money. **How much depends on which licence we apply for:**

IF FLC'S LICENCE IS...	MONEY WE MUST HOLD
Structural landscaping (trade)	\$12,000
A builder class, matching Alistair's	\$46,000

WHAT WE SHOULD DO

Ask Alistair to add “Structural landscaping (trade)” to his own licence. It costs him \$250–\$500. Then FLC applies for that same licence and only needs \$12,000 in the company instead of \$46,000.

Confirm it with QBCC on the call before anyone lodges anything.

06 What it costs to set up

ITEM	COST
QBCC licence — application plus first year	\$1,402.83
Yearly renewal after that	~\$670
Lawyer to check the employment agreement	~\$500–\$1,500
Alistair adding the trade class (<i>he pays</i>)	\$250–\$500
WorkCover policy for Alistair	small, based on wages
Forms, QLeave, the financial declaration	\$0

So roughly \$2,000–\$3,000 to get set up, and most of it is one-off.

07 The money that has to sit in the company

\$12,000 Must stay in the company	\$16k–\$24k Profit to hold back to get there	\$200,000 Most we can turn over on this licence
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It's more than \$12,000 because tax takes a cut, and because we want a buffer — if the figure drops too far below what we told QBCC, we're forced into a paid accountant's report.

THE GROWTH LIMIT NOBODY MENTIONS

That \$200,000 cap is our whole year. At \$30,000 a wall, that's **fewer than seven walls** — and going over what we've declared is a breach. When we get close, we move up a level. Worth a check at half-year.

THE TRADE-OFF TO DECIDE

Holding profit back costs nothing but takes a quarter or two — and we can't take wall work in the meantime. **Putting \$12k–\$20k in ourselves** gets us licensed straight away. If there's wall work we want now, that's the better call.

08 The one cost we don't know yet

Queensland has a **home warranty insurance** scheme. On residential building work over \$3,300 the builder has to pay a premium on every job.

QBCC says retaining walls are covered *when they're part of a bigger house build*. What we couldn't confirm is whether a **standalone wall** — which is all we do — counts on its own.

WHY IT MATTERS

If it applies, it's a **cost on every wall, on top of the 5%**, and our pricing has to change. If it doesn't, we pay nothing. **It's the biggest open money question we have** — and it's one question on the QBCC call.

09 What happens next

#	STEP
1	Take licence 76041 off the website, quotes, email footers, socials and signage — today.
2	Diarise 16 March 2027 — Alistair's licence expires. If it lapses we have no licensed builder.
3	Ring QBCC on 139 333 and ask the three questions below.
4	Build the \$12,000 in the company, or decide to put it in.
5	Get the employment agreement checked by a lawyer and signed. We can start this now — it isn't waiting on anything.
6	Lodge the licence application , then the nominee form naming Alistair.
7	Set up payroll, WorkCover and QLeave before the first job.

Step 1 takes ten minutes and costs nothing. Steps 2 and 3 take an afternoon — and everything else depends on those answers.

The three questions for QBCC

- 1 “Our builder holds Contractor Licence 76041, Builder — Low Rise. Does that cover retaining walls? And can he be the nominee for a Structural landscaping (trade) company licence?”
- 2 “We build standalone retaining walls for homeowners, \$10,000 to \$30,000, not part of any other building work. Do we pay home warranty insurance on those?”
- 3 “Does our earthworks revenue count toward the \$200,000 cap, or only the licensed building work?”

The forms

Licence search & portal	my.qbcc.qld.gov.au
Company licence application (<i>the money declaration is built in</i>)	application form
Nominee form — names Alistair	nominee form
Current fees	qbcc.qld.gov.au/licences

The application must be signed by **two directors**, or one director and the secretary.

10 Three things we have to get right

Alistair has to actually turn up	He signs a short record at every site visit, and we keep them. If he signs off walls he never looked at, that's an offence for both of us and both licences are at risk.
Stepped walls aren't small walls	Two 800mm walls up a slope push against each other and need an engineer. Alistair checks this <i>before we quote</i> .
He stays off the tools	He's there to supervise. If he starts working on the walls, different employment rules kick in and the 5% deal stops working.

Prepared August 2026 for the directors of First Light Civil Pty Ltd. The full detail, sources and the draft employment agreement sit behind this pack. **Not legal advice** — a Queensland construction lawyer should review the agreement before anyone signs.